

HOUSE BILL 1639

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 29; Title 4, Chapter 3, Part 20 and
Section 38-3-114, relative to the office of
homeland security.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 3, Part 20, is amended by
adding the following as a new section:

4-3-2020. Office of homeland security.

(a) There is created within the department of safety the office of homeland
security.

(b) The commissioner shall appoint the head of the office.

(c) The office shall employ such commissioned agents and noncommissioned
personnel as may be necessary to carry out the operations of the office. Agents must be
commissioned under § 38-3-114.

(d) The office may:

(1) Direct the state's homeland security activities, including, but not
limited to, the planning, coordination, and implementation of all homeland
security prevention, protection, and response operations;

(2) Design, develop, and implement a comprehensive, coordinated
strategy to secure this state from terrorist threats and attacks;

(3) Work with related agencies of the federal government, agencies of
local governments, agencies of other state governments, and related private
sector entities on matters of homeland security;

(4) At the request of the chief law enforcement officer of a state or local law enforcement agency, provide technical and investigative support;

(5) Conduct overt and covert investigations and provide technical and investigative support into:

(A) Threats or acts of terrorism or suspected terrorism;

(B) Threats to, or attacks on, schools in accordance with § 49-6-2701;

(C) Threats to, or attacks on, critical infrastructure;

(D) Threats to, or attacks on, public safety;

(E) Threats to, or attacks on, public officials;

(F) Protection of public officials, locations, and events; and

(G) Cyber-attacks and intrusions, cyber misinformation campaigns, and cyber disinformation campaigns;

(6) Administer any funds as may be authorized by the general assembly;

(7) Coordinate policy related to school security according to § 49-6-802 and review school security plans as authorized in § 49-6-4302;

(8) Upon request of the secretary of state's office, assist with securing the state's election infrastructure; and

(9) Cooperate and exchange information with other state agencies, other law enforcement agencies, and federal, state, and local law enforcement stakeholders within and outside of this state, through a statewide information and intelligence center to obtain information to prevent, detect, and control crime and apprehend criminals.

(e) Homeland security agents are not prohibited from investigating crimes not specifically referred to in this section. Likewise, other law enforcement agencies are not prohibited from investigating crimes referred to in this section.

SECTION 2. Tennessee Code Annotated, Section 38-3-114, is amended by deleting the section and substituting instead:

(a) The commissioner of safety may commission such number of homeland security officers who directly support state, federal, and local law enforcement activities involved in countering or responding to acts of terrorism, as authorized in § 4-3-2020, to act as peace officers for the office of homeland security.

(b) Each homeland security officer, throughout every county in this state, has the powers of a peace officer, including the power to make arrests for public offenses anywhere in this state. Further, such officers may serve process in criminal prosecutions for such offenses, and may carry weapons for the reasonable purposes of their offices and while in the performance of their assigned duties, and carry off-duty as authorized by § 39-17-1350.

(c) The keepers of jails in any county or municipality where a violation occurs, for which any such arrest is made by a homeland security officer, shall receive all persons arrested by such officer to be dealt with according to law, and persons so arrested must be received by keepers of jails on the same basis and have the same status as prisoners arrested by any other law enforcement officer.

(d) Every homeland security officer shall, when on duty, have in the officer's possession a badge and identification card identifying the officer as a homeland security officer, and the officer shall exhibit the badge and identification card on demand and before making an arrest within a reasonable time.

(e) Homeland security officers appointed under this section must complete appropriate initial training and recurrent law enforcement training substantially equivalent to the requirements of the Tennessee peace officers standards and training commission.

SECTION 3. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.